

QUESTION 1

A. Show Cause

In *R v K* (“K”), the applicant sought bail for the show cause offences¹ of aggravated armed robbery,² and conveyance without consent of owner.³ Following the two-step process of determining bail for show cause offences,⁴ Judge Smith initially assessed whether the defence had proven detention was unjustified⁵ on the balance of probabilities.⁶ His Honour considered all credible evidence,⁷ including matters beyond s18 of the *Bail Act 2013* (“the Act”).⁸

The defence relied upon three grounds to show cause: the co-accused being granted bail with almost identical cases,⁹ the short adjournment period until trial,¹⁰ and the length of time already spent in custody,¹¹ given the applicant had been held on remand for the duration of three trials for the same offences – all quashed due to inadmissible evidence. The latter submission was highly persuasive as His Honour noted the defendant had served the length of a non-parole period likely to be imposed if convicted and that the deprivation of liberty for the prolonged period of eight years, prior to conviction, is undesirable.¹²

The prosecution disputed the defence had generated sufficient reason for detention to be unjustified,¹³ underscoring the primacy of a strong Crown case where conviction is highly likely.¹⁴ The Crown cited the defendant’s extensive criminal history,¹⁵ the seriousness of offences involving firearms,¹⁶ and the mitigated significance of denying bail for a short adjournment period. His Honour rejected the latter argument, following *R v Anderson* that

¹ *Bail Act 2013* (NSW) s 16(b)(1)(d)(ii).

² *Crimes Act 1900* (NSW) s 97(2).

³ *Ibid* s 154A(1)(b).

⁴ *R v Tikomaimaleya* [2015] NSWCA 83 [16].

⁵ *Bail Act 2013* (NSW) s 16A(1).

⁶ *Ibid* s 32.

⁷ *Ibid* s 31(1).

⁸ *R v Tikomaimaleya* [2015] NSWCA 83 [25].

⁹ *K v R* [2024] NSWCCA 199 [44].

¹⁰ *R v Anderson* [2015] NSWSC per McCallum J.

¹¹ *R v Boyd* [2015] NSWSC 1065 [20]-[22]; *DPP (NSW) v Zaiter* [2016] NSWCCA 247 [44].

¹² *R v K* per Smith J; *R v Kugor* [2015] NSWCCA 14 [35].

¹³ *Bail Act 2013* (NSW) s 16A(1)(a).

¹⁴ *Lacey v DPP (NSW)* [2007] QCA 413.

¹⁵ *Kitson v DPP (NSW)* [2019] NSWSC 1856 [6].

¹⁶ *Abdulrahman v The Queen* [2015] NSWCCA 238 [49].

shorter adjournment periods represent smaller risks.¹⁷ The combination of factors¹⁸ of length of time spent in custody and short adjournment period were deemed sufficient to show cause, following that a strong Crown case is not determinative of whether detention is justified.¹⁹

B. Unacceptable Risk Test

The prosecution raised bail concerns under s17 of *the Act*,²⁰ and Judge Smith considered matters exhaustively listed under s18(1) to assess whether granting bail presented an unacceptable risk.²¹

The Crown characterised the bail concern of failure to appear at proceedings²² as inherent due to the strong Crown case²³ and inevitability of a custodial sentence.²⁴ However, His Honour was persuaded by the defence's submission that bail conditions including the applicant not applying for any passport,²⁵ not approaching international departure points,²⁶ and his father providing a \$10,000 security deposit,²⁷ could reasonably be imposed to address the risk of fleeing.²⁸

On the bail concerns of the applicant "committing serious offences [and] putting the community at risk", the Crown cited the seriousness of the charges, the prosecution case's strength and the defendant's criminal history.²⁹ This included recent convictions of possession of a prohibited drug while in custody. The defence submitted the applicant's serious criminal conduct as a younger man was unrepresentative of his current character, as he had not engaged in such offences for a significant time.³⁰ His Honour accepted the Crown's submissions that bail concerns existed, but found there was no unacceptable risk as concerns could be mitigated by the defence's suggested bail conditions.³¹ These included conduct

¹⁷ *R v Anderson* [2015] NSWSC per McCallum J.

¹⁸ *Woods v DPP* [2014] VSC 1 [51].

¹⁹ *Director of Public Prosecutions (NSW) v Mawad* [2015] NSWCCA 227 [44]; *JM v The Queen* [2015] NSWSC 978 [41].

²⁰ *Bail Act 2013* (NSW) s 17.

²¹ *Ibid* s 18(1).

²² *Ibid* s 17(2)(a).

²³ *Ibid* s 18(1)(c).

²⁴ *Ibid* s 18(1)(i).

²⁵ *Ibid* s 25.

²⁶ *Ibid* s 25.

²⁷ *Ibid* s 26.

²⁸ *Ibid* s 18(1)(p).

²⁹ *Ibid* s 17(2)(b)-(c); *R v K* per Smith J.

³⁰ *Bail Act 2013* (NSW) s 18(1)(a).

³¹ *Bail Act 2013* (NSW) s 18(1)(p).

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requirements that the applicant must not contact the co-accused and not be within 25 metres of the alleged robbery location,³² and electronic monitoring requirements to possess only one mobile telephone and provide the password to police.³³ His Honour further accepted the defence's submission that low-level offences in the custodial environment were distinct from criminal risk in the community.

Despite substantial overlap in matters considered, the show cause test was not determinative of the unacceptable risk test.³⁴ Having completed the two-step process, the defendant was granted bail.³⁵

³² Ibid s 25.

³³ Ibid s 28B.

³⁴ Ibid s 19(3); *R v Tikomaimaleya* [2015] NSWCA 83.

³⁵ *R v Tikomaimaleya* [2015] NSWCA 83

QUESTION 2

A. Introduction

Judge Smith resolved bail issues by balancing the defence's submission regarding presumption of innocence and the Crown's submission regarding community safety, as prescribed by the Preamble of *the Act*.³⁶ Neither principle is "necessarily...entitled to more weight than the other",³⁷ requiring individualised justice.³⁸ His Honour afforded greater significance to the former principle, given the applicant's lengthy custody on remand and that bail conditions mitigated community risk.

B. Presumption of Innocence

The common law presumption of innocence is the "golden thread" that belies the criminal justice system, reflecting the prima facie right to liberty.³⁹ Despite concerns following the *Bail Amendment Act 2014* that relegating the presumption of innocence from the Purpose to the Preamble of *the Act* "eroded"⁴⁰ or "encroached"⁴¹ upon the principle, McCallum J affirmed in *M v R* that the amendment did not abrogate the presumption.⁴²

As K's prior convictions for the offences had been overturned, Judge Smith treated the applicant as innocent. Accordingly, the deprivation of his liberty for a period analogous to a non-parole period likely to be imposed if convicted,⁴³ posed serious concerns of the pre-trial process becoming punitive. The notion of bail being so onerous that the cost outweighs penalties formally imposed is antithetical to the presumption of innocence and the fundamental structure of criminal procedure.⁴⁴ His Honour's significant consideration of the

³⁶ *Bail Act 2013* (NSW) Preamble.

³⁷ *R v Hawi* (2014) NSWSC 837 [47].

³⁸ *Ibid* [48]; *Kable v Director of Public Prosecutions (NSW)* (1995) 36 NSWLR 37, 394.

³⁹ *Woolmington v DPP* [1935] AC 462; *Bail Act 2013* (NSW) Preamble; New South Wales Law Reform Commission, *Bail* (Report No 133, April 2012).

⁴⁰ Lesley Townsley, 'Returning to Presumptions and the Erosion of Fundamental Rights: The Bail Amendment Act 2014 (NSW)' (2015) 40(1) *Alternative Law Journal*.

⁴¹ Prajesh Shrestha, 'Two Steps Back: The Presumption of Innocence and Changes to the Bail Act 2013 (NSW)' (2015) 37(1) *Sydney Law Review* 147.

⁴² *M v R* [2015] NSWSC 138.

⁴³ *R v K* per Smith J.

⁴⁴ Tracey Booth and Lesley Townsley, 'The Process is the Punishment: the Case of Bail in New South Wales' (2009) 21(1) *Current Issues in Criminal Justice* 4; Malcolm Feeley, *The Process is the Punishment* (Cambridge University Press, 1979) 283-286.

presumption of innocence to show cause affirmed the non-punitive objectives of bail and the uncorroded role of the “golden thread”.⁴⁵

C. Community Safety

The Act espouses the significance of contemplating risk to community safety,⁴⁶ rejecting scholarly criticism that detaining applicants on this premise entails a premature evaluation of guilt – inconsistent with the presumption of innocence.⁴⁷ The *Bail Amendment Act 2014*⁴⁸ adopted all recommendations from former Attorney-General John Hatzistergos’ *Review of the Bail Act 2013*, which describes the amendments’ purpose as “[ensuring] community safety is paramount”. This does not necessarily apply to every case, as individualised justice dictates there is no automatic paramount consideration.⁴⁹ In *K*, the “serious risk profile” associated with aggravated armed robbery⁵⁰ and the applicant’s criminal history necessitated Judge Smith’s consideration of the bail concern of community endangerment.⁵¹ The trend towards greater regard for community protection likely propelled the defence’s suggestion of highly restrictive bail conditions including electronic monitoring, without which the Crown’s submission regarding unacceptable risk and paramount consideration of community safety may have been accepted.

D. Adversarial System

The adversarial system posits the object of the criminal justice system to “find the truth and do justice according to law”,⁵² can best be achieved through “legal combat” between “two opposing and evenly matched parties”,⁵³ where the judge adjudicates.⁵⁴ This is seen in *K*,

⁴⁵ *Woolmington v DPP* [1935] AC 462.

⁴⁶ *Bail Act 2013* (NSW) Preamble.

⁴⁷ Prajesh Shrestha, ‘Two Steps Back: The Presumption of Innocence and Changes to the Bail Act 2013 (NSW)’ (2015) 37(1) *Sydney Law Review* 147; Andrew Ashworth, *Prevention and the Limits of the Criminal Law* (Oxford University Press, 2013) ch 6.

⁴⁸ *Bail Amendment Act 2014* (NSW).

⁴⁹ John Hatzistergos, *Review of the Bail Act 2013* (Final Report, July 2014) 3.

⁵⁰ New South Wales Law Reform Commission, *Bail: Show Cause Offences and the Unacceptable Risk Test* (Report No 150, October 2022).

⁵¹ *Bail Act 2013* (NSW) s 17(2)(c).

⁵² *Jones v National Coal Board* [1957] 2 QB 55.

⁵³ David Plater, Lucy Line, ‘Has the ‘Silver Thread’ of the Criminal Law Lost Its Lustre? The Modern Prosecutor as a Minister of Justice?’ (2012) 31(2) *University of Tasmania Law Review* 55.

⁵⁴ Alison Creighton, ‘An Adversarial System: A Constitutional Requirement’ (1999) 74 *Australian Law Reform Commission Reform Journal* 65, 65-67.

where opportunity was afforded to the defence and prosecution to provide submissions respectively for the applicant's release and detention,⁵⁵ and Judge Smith provided a reasoned assessment.

However, the adversarial system is innately asymmetrical,⁵⁶ as individual defendants are pitted against a "battery of high-powered lawyers...engaged by the Commonwealth".⁵⁷ Redress for the imbalance of power and resources in bail hearings arises from the Crown bearing the burden of proof for unacceptable risk.⁵⁸ In *K*, greater symmetry was achieved through the Crown's obligation to prove unacceptable risk by citing matters under s18(1) and the defence's ability to rebut the Crown's submissions, acting as a relatively equal opponent.⁵⁹ Conversely, the delay in proceedings was prolonged by the denial of a Legal Aid grant and the applicant's self-described inability to represent himself.⁶⁰ The disparity in resources thus abrogated the applicant's right to liberty. Hence, *K* demonstrates the redress of adversarial asymmetry is substantial though not absolute.

E. Conclusion

The decision in *K* was informed by the partial symmetry of the adversarial system, the value of community safety and primarily, the presumption of innocence, due to the exceptional time the applicant was held on remand.

⁵⁵ *Bail Act 2013* (NSW) s 49-50.

⁵⁶ Peter Underwood, 'The Trial Process – Does one size fit all?' (Speech, Australian Insurance Law Association, 10 November 2005).

⁵⁷ *Ibid* [16].

⁵⁸ Andrew Ashworth, 'Four Threats to the Presumption of Innocence' (2006) 123 *South African Law Journal* 62.

⁵⁹ David Plater, Lucy Line, 'Has the 'Silver Thread' of the Criminal Law Lost Its Lustre? The Modern Prosecutor as a Minister of Justice?' (2012) 31(2) *University of Tasmania Law Review* 55.

⁶⁰ *K v R* [2024] NSWCCA 199 [23].

APPENDIX

Case name	R v K
Date	4/4/2025
Court	Downing Centre District Court
Presiding Officer	Judge J Smith
Reason the matter is listed	Bail Hearing
Note	Approved by Unit Convenor to observe bail hearing in District Court.

BIBLIOGRAPHY

A. Articles/Books/Reports

Ashworth, Andrew, 'Four Threats to the Presumption of Innocence' (2006) 123 *South African Law Journal* 62.

Ashworth, Andrew, *Prevention and the Limits of the Criminal Law* (Oxford University Press, 2013)

Booth, Tracey and Lesley Townsley, 'The Process is the Punishment: the Case of Bail in New South Wales' (2009) 21(1) *Current Issues in Criminal Justice* 4

Creighton, Alison, 'An Adversarial System: A Constitutional Requirement' (1999) 74 *Australian Law Reform Commission Reform Journal* 65

Feeley, Malcolm, *The Process is the Punishment* (Cambridge University Press, 1979)

Finkelstein, Ray, 'The Adversarial System and the Search for Truth' (2011) 37(1) *Monash University Law Review* 135

Hatzistergos, John, *Review of the Bail Act 2013* (Final Report, July 2014)

New South Wales Law Reform Commission, *Bail: Show Cause Offences and the Unacceptable Risk Test* (Report No 150, October 2022)

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Plater, David and Lucy Line, 'Has the 'Silver Thread' of the Criminal Law Lost Its Lustre? The Modern Prosecutor as a Minister of Justice?' (2012) 31(2) *University of Tasmania Law Review* 55

Shrestha, Prajesh, 'Two Steps Back: The Presumption of Innocence and Changes to the Bail Act 2013 (NSW)' (2015) 37(1) *Sydney Law Review* 147

Townsley, Lesley, 'Returning to Presumptions and the Erosion of Fundamental Rights: The Bail Amendment Act 2014 (NSW)' (2015) 40(1) *Alternative Law Journal*

B. Cases

Abdulrahman v The Queen [2015] NSWCCA 238

Director of Public Prosecutions (NSW) v Mawad [2015] NSWCCA 227

Director of Public Prosecutions (NSW) v Zaiter [2016] NSWCCA 247 [44]

JM v The Queen [2015] NSWSC 978

Jones v National Coal Board [1957] 2 QB 55

Kable v Director of Public Prosecutions (NSW) (1995) 36 NSWLR 37

Kitson v DPP (NSW) [2019] NSWSC 1856

K v R [2024] NSWCCA 199

Lacey v DPP (NSW) [2007] QCA 413

R v Alchin [2015] NSWSC 2112

R v Boyd [2015] NSWSC 1065

R v Hawi (2014) NSWSC 837 [47]

R v Tikomaimaleya [2015] NSWCA 83

Woods v DPP (NSW) [2014] VSC 1

Woolmington v DPP [1935] AC 462

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C. Legislation

Bail Act 2013 (NSW)

Crimes Act 1900 (NSW)

D. Other

Peter Underwood, 'The Trial Process – Does one size fit all?' (Speech, Australian Insurance Law Association, 10 November 2005)